

24CV05757 William Bowen v. The F.A. Bartlett Tree Expert Company

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

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Motion: Motion for Preliminary Approval of Class Action Settlement

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Case Number

24CV05757

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 07/22/2026 - 10:00

Nature of Proceedings

Motion for Preliminary Approval of Class Action Settlement

Tentative Ruling

For Plaintiff William Bowen: Paul K. Haines, Sean M. Blakely, Joel M. Gordon, Haines Law Group, APC

For Defendant The F.A. Bartlett Tree Expert Company: David L. Cheng, Min K. Kim, Ford Harrison LLP

RULING

For all reasons stated herein, the motion of Plaintiff William Bowen for preliminary approval of class action settlement is granted. The Court approves certification of the provisional settlement class as requested by Plaintiff and approves the class notice attached as exhibits A and B to the settlement agreement. The provisional settlement class consists of all current and former non-exempt employees who worked for Defendant in California from October 16, 2020, through January 5, 2026. Plaintiff is appointed as representative for the settlement class, Plaintiff's counsel of record is appointed as counsel for the

settlement class, and ILYM Group, Inc., is appointed as settlement administrator. The final approval hearing shall take place on January 27, 2027, at 10:00 a.m. in this department. The parties shall promptly carry out the notice procedures set forth in the settlement agreement.

Background

On October 16, 2024, Plaintiff William Bowen filed his class action complaint against Defendant The F.A. Bartlett Tree Expert Company setting forth eight causes of action for (1) minimum wage violations, (2) failure to pay all overtime wages, (3) meal period violations, (4) rest period violations, (5) failure to reimburse for all necessary business expenditures, (6) wage statement penalties, (7) waiting time penalties, and (8) unfair competition.

On November 19, 2024, Defendant filed an answer to the complaint generally denying the allegations therein and setting forth 45 affirmative defenses.

On November 20, 2024, Defendant filed a notice of removal of civil action to federal district Court.

On December 23, 2024, Plaintiff filed a separate state Court action against Defendant, Santa Barbara Case No. 24CV07248 (PAGA Action), for civil penalties under the Private Attorneys General Act of 2004 (PAGA).

Between November 2024 and February 2026, this action was pending in federal district Court. (See Federal District Court Docket Sheet, filed February 17, 2026.) The parties engaged in written discovery and depositions. (Declaration of Sean M. Blakely [Blakely Decl.], ¶ 10.)

On November 6, 2025, the parties attended a mediation. (Blakely Decl., ¶ 12.) On November 13, 2025, the mediator made a settlement proposal and the parties ultimately accepted the mediator's proposal. (Ibid.) The parties subsequently negotiated the long-form settlement agreement at issue in this motion (Settlement). (Id. at ¶ 12 & Ex. 1.)

On February 6, 2026, the federal district Court granted the parties' joint stipulation to remand this action to this Court. (See Federal District Court Docket Sheet, filed February 17, 2026, at Dkt. Ent. No. 28.)

On April 20, 2026, Plaintiff filed a first amended complaint (FAC) in this Court, adding a ninth cause of action for violation of PAGA.

As alleged in the FAC: Defendant's principal place of business is in Connecticut. (FAC, ¶ 3.) Defendant provides residential and commercial tree, shrub, and property maintenance services. (FAC, ¶ 10.) Plaintiff worked for Defendant in Santa Barbara County from July 31, 2023, until July 19, 2024. (Ibid.) Rather than pay Plaintiff for actual time worked, Defendant instructed Plaintiff to write down prescheduled work hours regardless of the time actually worked. (FAC, ¶ 11.) Plaintiff worked substantially more time than the time for which he was paid. (Ibid.) Plaintiff was not provided meal or rest breaks or paid a premium wage for missed breaks. (FAC, ¶¶ 12-13.) Plaintiff was required to use his cell phone for work purposes but had to personally pay those work-related expenses without reimbursement. (FAC, ¶ 14.) These unlawful practices were common across several classes of nonexempt employees in California, including a minimum wage class, an overtime class, a meal period class, a rest period class, an employee expense class, a wage statement class, and a waiting time class. (FAC, ¶ 17.)

On April 29, 2026, Plaintiff filed a request for dismissal of the separate state Court PAGA Action without prejudice. On May 1, 2026, Plaintiff filed a notice of entry of dismissal.

On May 1, 2026, Plaintiff filed a motion for preliminary approval of class action settlement in this action. This motion is unopposed.

Analysis

(1) The Settlement

The Settlement is attached to the declaration of Sean M. Blakely as Exhibit 1. (Blakely Decl., Ex. 1.) The Settlement is between Plaintiff and Defendant, and is contingent on the Court's approval. (Id. at p. 1.) If the Settlement is not approved, the parties agreed to revert to the status of the case before settlement was reached, including taking appropriate steps to remove this action back to the federal district Court. (Ibid.)

The settlement class is defined as "[a]ll current and former non-exempt employees who worked for [Defendant] in California from October 16, 2020, through January 5, 2026 (the 'Class Period')." (Blakely Decl., Ex. 1 at p. 2.)

The gross settlement amount (GSA) is \$3,425,000. (Blakely Decl., Ex. 1 at ¶ 3.) There is no reversion. (Id. at ¶ 3(C).) The following amounts will be paid from the GSA: settlement administration costs up to \$10,000; incentive payment to the Plaintiff up to \$10,000; litigation costs up to \$100,000; attorney fees up to 35 percent of the GSA or \$1,198,750; and PAGA penalties in the amount of \$100,000. (Ibid.) If the workweeks exceed the estimates by more than 10 percent, the GSA could increase pursuant to an escalator clause or, alternatively, the Class Period could be shortened to end on the date when the estimated workweeks are reached. (Id. at ¶ 3(D).) The remaining Net Settlement Amount will be distributed to the settlement class.

The estimated Net Settlement Amount of \$2,006,250 will be distributed to participating settlement class members based on their proportionate number of workweeks during the Class Period. (Blakely Decl., Ex. 1 at ¶ 4.) There are approximately 504 settlement class members. (Id., ¶ 14.) The average settlement payment to each participating class member is projected at \$3,980.65. (Ibid.)

Aggrieved employees under PAGA will also receive their share of the PAGA penalties. (Blakely Decl., Ex. 1 at ¶ 4(B)(ii).) 35 percent of the PAGA penalties (or \$35,000) will be paid to aggrieved employees based on their proportionate number of pay periods worked during the PAGA Period and 65 percent (or \$65,000) will be paid to the Labor and Workforce Development Agency (LWDA). (Id. at ¶ 3C(5).)

The settlement administrator will calculate the taxes and withholdings and pay any withholdings to the appropriate tax authorities before distribution. (Blakely Decl., Ex. 1 at ¶ 4(C).) The individual settlement payments will be allocated as 80 percent penalties and interest and 20 percent as wages. (Id. at 4(D).) The PAGA penalty payments to aggrieved employees will be treated as 100 percent penalties. (Ibid.)

(2) Procedures for Approval of Class Action Settlement

"Rule 3.769 of the California Rules of Court (CRC) sets forth the procedures for settlement of class actions in California. [Citation.] A two-step process is required. First, the Court preliminarily approves the settlement and the class members are notified as directed by the Court. [Citation.] 'The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.' [Citation.] Second, the Court conducts a final approval hearing to inquire into the fairness of the proposed settlement. [Citation.] If the Court approves the settlement, a judgment is entered with provision for continued jurisdiction for the enforcement of the judgment. [Citation.]" (Cellphone Termination Fee Cases (2009) 180 Cal.App.4th 1110, 1118; see also Cal. Rules of Court, rule 3.769(c)-(f).)

The Court may make an order approving or denying certification of a provisional settlement class after the preliminary settlement hearing.” (Cal. Rules of Court, rule 3.769(d).) “If the Court grants preliminary approval, its order must include the time, date, and place of the final approval hearing; the notice to be given to the class; and any other matters deemed necessary for the proper conduct of a settlement hearing.” (Id., rule 3.769(e).)

(3) Certification of Settlement Class

Code of Civil Procedure section 382 authorizes class actions “when the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the Court, one or more may sue or defend for the benefit of all.” (Code Civ. Proc., § 382.) “Class certification requires proof (1) of a sufficiently numerous, ascertainable class, (2) of a well-defined community of interest, and (3) that certification will provide substantial benefits to litigants and the Courts, i.e., that proceeding as a class is superior to other methods. [Citation.]” (Fireside Bank v. Superior Court (2007) 40 Cal.4th 1069, 1089.)

To determine whether a class is ascertainable, the Court examines “(1) the class definition, (2) the size of the class, and (3) the means available for identifying class members. [Citation.]” (Reyes v. San Diego County Bd. of Supervisors (1987) 196 Cal.App.3d 1263, 1271.) “A related inquiry is manageability of the proposed class[.]” (Global Minerals & Metals Corp. v. Superior Court (2003) 113 Cal.App.4th 836, 849.) “The community of interest requirement embodies three factors: (1) predominant common questions of law or fact; (2) class representatives with claims or defenses typical of the class; and (3) class representatives who can adequately represent the class.” (Richmond v. Dart Industries, Inc. (1981) 29 Cal.3d 462, 470.)

For purposes of the proposed settlement class, Plaintiff’s claims appear to arise from the same course of conduct that gives rise to the claims of other putative class members. (See Declaration of William Bowen, ¶¶ 2-6; FAC, ¶¶ 10-16, 24-62.) Plaintiff’s counsel appears adequate based on their experience and qualifications. For purposes of settlement, there appears to be a well-defined community of interests and a class action appears to be the superior method to resolve the issues presented in this action. The settlement class members can be identified from Defendant’s records. The parties have identified approximately 504 putative class members ostensibly subjected to the same policies and practices, based on the same legal standards. The circumstances of this action are typical of wage and hour cases that are settled via the class action process. Plaintiff has met his burden to establish the requirements for certification of a settlement class as defined in the Settlement.

(4) Notice to Settlement Class Members

“If the Court has certified the action as a class action, notice of the final approval hearing must be given to the class members in the manner specified by the Court. The notice must contain an explanation of the proposed settlement and procedures for class members to follow in filing written objections to it and in arranging to appear at the settlement hearing and state any objections to the proposed settlement.” (Cal. Rules of Court, rule 3.769(f).)

“The content of the class notice is subject to Court approval. If class members are to be given the right to request exclusion from the class, the notice must include the following: [¶] (1) A brief explanation of the case, including the basic contentions or denials of the parties; [¶] (2) A statement that the Court will exclude the member from the class if the member so requests by a specified date; [¶] (3) A procedure for the member to follow in requesting exclusion from the class; [¶] (4) A statement that the judgment, whether favorable or not, will bind all members who do not request exclusion; and [¶] (5) A statement that any member who does not request exclusion may, if the member so desires, enter an appearance through counsel.” (Cal. Rules of Court, rule 3.766(d).)

“In determining the manner of the notice, the Court must consider: [¶] (1) The interests of the class; [¶] (2) The type of relief requested; [¶] (3) The stake of the individual class members; [¶] (4) The cost of notifying class members; [¶] (5) The resources of the parties; [¶] (6) The possible prejudice to class members who do not receive notice; and [¶] (7) The res judicata effect on class members.” (Cal. Rules of Court, rule 3.766(e).)

ILYM Group, Inc. (ILYM), will act as settlement administrator. (Declaration of Anthony Rogers [Rogers Decl.], ¶¶ 2-9.) ILYM has agreed to conduct address traces to locate class member addresses as necessary, mail the class notice to the class members, address inquiries from class members concerning the class notice, and perform other such duties as the parties or the Court may direct. (Rogers Decl., ¶ 4.) ILYM will provide a mailing address and toll-free telephone number to receive correspondence and inquiries from class members. (Rogers Decl., ¶ 5.) Should any class notices be returned to ILYM as undeliverable, ILYM will attempt to locate an updated address using skip trace efforts and will promptly re-mail the class notice. (Rogers Decl., ¶ 7.) Prior to sending out the notice in English & Spanish, ILYM will fill in the specific date for the deadline so that all class members will be apprised of when applicable forms are due. (Rogers Decl., ¶ 8.) The fees associated with the administration of this settlement are \$9,550. (Rogers Decl., ¶ 10.)

The Settlement contains detailed notice procedures. (Blakely Decl., Ex. 1 at ¶ 9.) Within 15 business days after preliminary approval, Defendant will provide the class data to ILYM. (Id. at ¶ 9(A).) Within 10 days after receiving the class data, ILYM will: "(i) run the names of all Settlement Class members through the National Change of Address ('NCOA') database to determine any updated addresses for Settlement Class members; (ii) update the address of any Settlement Class member for whom an updated address was found through the NCOA search; (iii) calculate the estimated Settlement Payment for each Settlement Class member; and (iv) mail a Notice Packet to each Settlement Class member at his or her last known address or at the updated address found through the NCOA search, and retain proof of mailing." (Id. at ¶ 9(B).) If a notice is returned as undeliverable, ILYM will perform a skip trace search and seek an address correction for such class members, and a second notice packet will be sent to any new or different address obtained by the skip trace process or to any forwarding address provided. (Id. at ¶ 9(F).) "Settlement Class members to whom Notice Packets are re-mailed after having been returned as undeliverable to the Settlement Administrator shall have fourteen (14) calendar days from the date of re-mailing, or until the Response Deadline has expired, whichever is later, to submit a Request for Exclusion, Objection, or dispute." (Ibid.)

The proposed notice is attached to the Settlement as exhibit A (class notice) and exhibit B (notice of estimated individual settlement payment). (Blakely Decl., Ex. 1 at Exs. A-B.) The class notice contains a brief explanation of the case (Blakely Decl., Ex. 1 at Ex. A, pp. 1-2), a statement that the Court will exclude a member if the request is submitted by a specified date (id. at pp. 4-5), a procedure for the member to follow in requesting exclusion from the class (ibid.), a statement that the settlement if approved will bind all members who do not request exclusion and that certain claims will be released (id. at pp. 4-6), and a statement that a party who wishes to participate may object and appear through separate counsel (id. at p. 5). The proposed notice packet contains a separate document explaining the workweek calculation and the individual share of the settlement for a class member, as well as a procedure for disputing these calculations and updating a member's mailing address. (Blakely Decl., Ex. 1 at Ex. B.)

The Court finds the notice easy to understand, sufficient to apprise the members of their rights and obligations in connection with the proposed settlement, and sufficient to notify those members of their right and opportunity to opt out of or present objections to the settlement. For these reasons, the Court finds that the proposed class notice complies with due process. (See *Martorana v. Marlin & Saltzman* (2009) 175 Cal.App.4th 685, 694-695.) The cost of the notice and administration appears reasonable under the circumstances. The proposed notice appears to meet the statutory requirements. (See Cal. Rules of Court, rule 3.766(d)-(f).)

(5) Preliminary Evaluation of Fairness of Settlement

"Before final approval, the Court must conduct an inquiry into the fairness of the proposed settlement." (Cal. Rules of Court, rule 3.769.) "The trial Court has broad discretion to determine whether the settlement is fair. [Citation.] It should consider relevant factors, such as the strength of Plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. [Citation.] The list of factors is not exhaustive and should be tailored to each case. Due regard should be given to what is otherwise a private consensual agreement between the parties. The inquiry 'must be limited to the extent necessary to reach a reasoned judgment that the agreement is not the product of fraud or overreaching by, or collusion between, the negotiating parties, and that the settlement, taken as a whole, is fair, reasonable and adequate to all concerned.' " (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 (*Dunk*).) "[A] presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the Court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small." (Id. at p. 1802.)

Applying the factors under *Dunk*, it appears class counsel conducted an adequate factual and legal investigation. (Blakely Decl., ¶¶ 9-22.) The parties appear to have engaged in arm's length settlement negotiations before an experienced mediator. (Id. at ¶ 12.) The gross settlement amount appears reasonable in light of the potential liability and likelihood of success on the merits. (Id. at ¶¶ 15-22.) An estimated average payout of \$3,980.65 per class member provides meaningful monetary benefits to settlement class members. (Blakely Decl., ¶ 14.) Plaintiff's counsel appears qualified with experience in this area of law. (Id. at ¶¶ 2-7; Declaration of Paul K. Haines, ¶¶ 4-10.)

The involvement of a mediator strongly weighs in favor of finding that the Settlement represents a non-collusive and arm's-length agreement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128-129.) "The Court undoubtedly should give considerable weight to the competency and integrity of counsel and the involvement of a neutral mediator in assuring itself that a settlement agreement represents an arm's length transaction entered without self-dealing or other potential misconduct." (Id. at p. 129.)

The Court notes there are risks involved in litigating this action through trial, including that class certification might be denied or only partially granted, or class-wide liability might be substantially less than the maximum potential exposure. The Court has considered potential defenses to liability. The Court has also considered the likely duration of litigating this action through trial and a potential for recovery that is less than the maximum amount of liability. The Court has considered the views of experienced class counsel regarding such risks and the relative certainty of settlement compared to continued litigation. The Court has considered the benefits to the settlement class if the Settlement is approved compared to potential benefits and risks if the litigation continues.

Having evaluated the motion, the memorandum, and the declarations, the Court finds the Agreement is within the range for possible approval. The Settlement appears reasonable given the legal and factual requirements for each set of claims, the benefits of early settlement, and the reality that a disputed certification motion might not be fully successful. The available evidence and information appearing in the motion and discussed above shows that Plaintiff has engaged in formal and informal investigations and discovery to which Defendant has responded by providing relevant data and records. There is no evidence to suggest that the Settlement is the product of collusion. Plaintiff has met his burden to establish that, for purposes of preliminary approval, the proposed settlement is fair, reasonable, adequate and in the best interests of the putative class. (See *Dunk*, supra, 48 Cal.App.4th at p. 1801.) The Court will evaluate the proposed fees, costs, and other aspects of the proposed settlement in more detail at the final approval hearing.

(6) Scope of Class Release

"A class action settlement must be approved by the Court to protect 'class members ... whose rights may not have been given due regard by the negotiating parties.' [Citation.] Consequently, Courts must remain vigilant and ensure that class releases do not extend to claims that are beyond the scope of the allegations in the complaint. Releases must be appropriately tethered to the complaint's factual allegations. ... Requiring a reasonable connection prevents the release from extending to claims that are only remotely related to the allegations in the complaint." (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 538 (*Amaro*).

"Upon the Effective Date and the complete funding of the Gross Settlement Amount, Settlement Class members will release all claims, demands, rights, liabilities and causes of action that were pled, or reasonably could have been pled, based on the facts stated in the operative FAC that arose during the Class Period, including claims for: (a) failure to pay all minimum wages; (b) failure to pay all overtime wages; (c) meal period violations; (d) rest period violations; (e) failure to reimburse for all necessary business expenditures; (f) wage statement penalties; (g) waiting time penalties; and (h) all claims for unfair business practices that could have been premised on the facts, claims, causes of action or legal theories described above (the 'Class Released Claims'). The period of the Class Released Claims shall

extend to the limits of the Class Period." (Blakely Decl., Ex. 1 at ¶ 2.) The released parties are, "Defendant, and all of its past and present officers, directors,

shareholders, employees, agents, principals, heirs, representatives, accountants, auditors, consultants, and their respective successors and predecessors in interest, subsidiaries, affiliates, parents and attorneys.” (Ibid.) The release appears “appropriately tethered to the complaint’s factual allegations....” (Amaro, supra, 69 Cal.App.5th at p. 538.)

(7) Preliminary Evaluation of the PAGA Settlement

PAGA is set forth in Labor Code sections 2698 through 2699.8. A PAGA action is a type of qui tam action, in which a private party is authorized to bring an action to recover a penalty on behalf of the government and receive part of the recovery as compensation. (Huff v. Securitas Sec. Servs. USA, Inc. (2018) 23 Cal.App.5th 745, 753.) In doing so, the employee acts as proxy for the state labor law enforcement agency; the proceeding is designed to protect the public, not to benefit private parties. (Amalgamated Transit Union, Local 1756, AFL-CIO v. Superior Court (2009) 46 Cal.4th 993, 1003.) The dispute is between the employer and the state. (Kim v. Reins International California, Inc. (2020) 9 Cal.5th 73, 81 (Kim).) “Of the civil penalties recovered, [65] percent goes to the [LWDA], leaving the remaining [35] percent for the ‘aggrieved employees.’ ” (Id.; see Lab. Code, § 2699, subd. m.)

The purpose of PAGA is not to recover damages, restitution, or redress the employees’ injuries, but to recover civil penalties to remediate present violations and deter future ones. (Kim, supra, 9 Cal.5th at p. 86.) “The superior Court shall review and approve any settlement of any civil action filed pursuant to this part. The proposed settlement shall be submitted to the [LWDA] at the same time that it is submitted to the Court.” (Lab. Code, § 2699, subd. (s)(2).)

The penalties at issue in this action carry an estimated potential of \$100, or in some cases more, for each aggrieved employee per pay period. (See Lab. Code, § 2699, subd. (f)(2)(A).) However, the Court has discretion to “award a lesser amount than the maximum civil penalty amount specified by this part ... if, based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust, arbitrary and oppressive, or confiscatory.” (Lab. Code, § 2699, subd. (e)(2).) Under these circumstances, the Court finds that the purposes of PAGA to remediate prior violations and deter future ones is largely achieved by the proposed class settlement. The PAGA penalties of \$100,000 as part of the overall settlement structure appears reasonable, fair, and adequate.

“In addition, all Settlement Class members (regardless of whether they opt out) who worked for Defendant at any time from October 16, 2023, through January 5, 2026 ... shall release the Released Parties from all claims for civil penalties under PAGA arising during the PAGA Period that were pled in the Action, or reasonably could have been pled, based on the facts stated in the operative FAC, and as disclosed in Plaintiff’s Notification Letter”(Blakely Decl., Ex. 1 at ¶ 2(B).)

The PAGA release appears sufficiently tethered to the facts and transactions giving rise to the PAGA penalties at issue in the PAGA period. (See Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 83, disapproved on other grounds in Turrieta v. Lyft, Inc. (2024) 16 Cal.5th 664, 709-710.) The PAGA settlement will not be finally approved until the Settlement is approved at the final approval hearing. Plaintiff shall provide evidence that he has submitted the Settlement to the LWDA when he files his final approval papers. (See Lab. Code, § 2699, subd. (s)(2).)

(8) Attorney Fees

Recovery of attorney fees and costs are available to a prevailing Plaintiff under statutes applicable to claims at issue in this action. (See Labor Code §§ 218.5, 218.6, 226, subd. (h), 1194, subd. (a), 2699, subd. (k)(1).) “We join the overwhelming majority of federal and state Courts in holding that when class action litigation establishes a monetary fund for the benefit of the class members, and the trial Court in its equitable powers awards class counsel a fee out of that fund, the Court may determine the amount of a reasonable fee by choosing an appropriate percentage of the fund created.” (Laffitte v. Robert Half Internat. Inc. (2016) 1 Cal.5th 480, 503-506 (Laffitte) [affirming attorney fee award of one-third of common fund class action settlement with lodestar cross-check].)

“Under the lodestar [cross-check] method, attorney’s fees are calculated by first multiplying the number of hours reasonably expended on the litigation by a reasonable hourly rate of compensation.” (Syers Properties III, Inc. v. Rankin (2014) 226

Cal.App.4th 691, 697.) “[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the Court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “The purpose of such adjustment is to fix a fee at the fair market value for the particular action. In effect, the Court determines, retrospectively, whether the litigation involved a contingent risk or required extraordinary legal skill justifying augmentation of the unadorned lodestar in order to approximate the fair market rate for such services.” (Ibid.)

“A lodestar cross-check is simply a quantitative method for bringing a measure of the time spent by counsel into the trial Court’s reasonableness determination; as such, it is not likely to radically alter the incentives created by a Court’s use of the percentage method. ... the lodestar calculation, when used in this manner, does not override the trial Court’s primary determination of the fee as a percentage of the common fund and thus does not impose an absolute maximum or minimum on the potential fee award.” (Laffitte, supra, 1 Cal.5th at p. 505.)

Here, the Plaintiff will seek up to 35 percent of the GSA as attorney fees. The Court finds this request is within the range of approval. The Court will apply the above standards to determine the actual attorney fee award at the final approval hearing. Plaintiff shall provide evidence of the reasonableness and necessity of these attorney fees when he files his final approval papers.

(9) Litigation Costs

Plaintiff seeks reimbursement of litigation costs up to \$100,000. According to Plaintiff, these costs pertain to a labor economist, a mediation fee, and other costs. (Blakely Decl., ¶ 24.) The Court will evaluate these costs at the final approval hearing. Plaintiff shall provide evidence of the reasonableness and necessity of these costs when he files his final approval papers.

(10) Incentive Award

Incentive awards to a class action Plaintiff are permitted based on a number of factors. (See Clark v. American Residential Services LLC (2009) 175 Cal.App.4th 785, 804 (Clark); Golba v. Dick’s Sporting Goods, Inc. (2015) 238 Cal.App.4th 1251, 1272 (Golba).) Courts have determined an “incentive award is appropriate ‘if it is necessary to induce an individual to participate in the suit,’ and have noted ‘relevant factors’ to consider in deciding whether such an award is warranted. [Citation.] Those factors include ‘the actions the Plaintiff has taken to protect the interests of the class, the degree to which the class has benefitted from those actions, and the amount of time and effort the Plaintiff expended in pursuing the litigation.’ [Citation.] Federal district Courts have identified other factors as well, including ‘the risk to the class representative in commencing suit, both financial and otherwise,’ ‘the notoriety and personal difficulties encountered by the class representative,’ the duration of the litigation, and ‘the personal benefit (or lack thereof) enjoyed by the class representative as a result of the litigation.’” (Clark, supra, 175 Cal.App.4th at p. 804.)

“Incentive awards to class representatives are intended to compensate class representatives for the work and risk undertaken on behalf of the class, to reimburse expenses incurred in the class litigation, and sometimes to recognize the willingness of class representatives to act as a private attorney general. [Citation.] An incentive award may be appropriate to induce someone to serve as a class representative. In determining whether to make an incentive award, the Court may consider (1) the risk, both financial and otherwise, the class representative faced in bringing the suit; (2) the notoriety and personal difficulties encountered by the class representative; (3) the amount of time and effort spent by the class representative; (4) the duration of the litigation; and (5) the personal benefit received by the class representative as a result of the litigation. [Citation.]” (Golba, supra, 238 Cal.App.4th at p. 1272.)

The Court will evaluate the proposed incentive award in light of the above standards at the final approval hearing. Plaintiff shall provide evidence supporting the requested incentive award with his final approval papers.

Judges

Judge Thomas Anderle

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